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Who Belongs? The Construction of American Identity Through Immigration and Sexuality

The chapter "'Treated neither with Respect nor with Dignity': Contextualizing Queer and Trans Migrant 'Illegalization,' Detention, and Deportation" from the book "Queer and trans migrations : dynamics of illegalization, detention, and deportation" written by Eithne Luibhéid show us how the American national identity is constructed and enforced through the intersection of race, gender, and sexuality. The author argues that "belonging" in America is not a neutral status but is tied to a specific heteronormative and racialized ideal that privileges some while illegalizing or excluding others.

The author opens with a compelling provocation: a group of undocumented migrants who constituted themselves as a "Blue Ribbon Commission", a form of institutional authority typically reserved for credentialed experts, not undocumented people. They demanded an end to the deportation pipeline. This reveals a central contradiction that the very system that makes decisions about the migrants' lives gives them no official seat at the table to influence these decisions. Reading this chapter alongside the question about sexuality and gender as social and historical categories, rather than simply attributes of bodies, makes me think about how immigration law has consistently treated "illegal" status as an inherent quality of certain people rather than as something produced through political and economic arrangements. Luibhéid's heteronormativity framework argues that "undocumented" isn't something people simply are, it is something that the system makes them. The author insists that undocumented status "reflects not a 'type' of person but rather, a person who has been made undocumented through relations of power, knowledge, and struggle" (19) . Just like gender and sexuality, "illegality" too is politically enforced.

Luibhéid also discusses how the U.S. immigration controls developed alongside settler colonialism, racial capitalism, and empire. The author mentions how in the nineteenth century, the policies of federal immigration functioned as a technology for producing a "heteronormative nation", one structured around a

white, patriarchal property owning family form (20). This type of nationalism was not just a political identity or cultural pride, but was a mechanism for determining whose reproduction matters, whose family ties are legible to the state, and whose presence is made disposable. The 1965 Hart-Cellar Act, is often celebrated for ending racial discrimination in immigration law, but it is shown to have quietly perpetuated racial hierarchies by enshrining nuclear family as the primary basis for legal admission (21). This shows that nationalism is not a timeless sentiment, but rather it is an ongoing project of inclusion and exclusion that changes as times change. The right-wing “manosphere” content that we covered in class also says the same thing. It updates based upon who constitutes the “true” national subject in the idiom of contemporary grievance politics.

The Toby Keith and Roy Wood Jr. videos show us that the feelings of nationalism are subjective and depend on who gets to feel it comfortably based upon their race. People at the centre of nationalism often don’t notice that the story they’re telling is specifically theirs, not everyone’s. Keith’s ‘Courtesy of the Red, White, and Blue’ treats patriotism as something simple and natural, something that is handed down from generation to generation, no questions asked. The song talks about using violence to protect America’s honor, and treats it as something that shouldn’t be justified. When Keith sings “we” or “us”, he doesn’t specify the race because whiteness has historically been the assumed subject of national belonging. Roy Wood Jr. on the other hand exposes through his comedy that national belonging has never been equally distributed. He forces us to confront the awkward, painful reality that Black Americans have been asked to be loyal to a country that has historically oppressed them. Both Keith and Wood share stories about masculinity and nationalism, just differently. Keith through physical toughness, and Wood through navigating power and survival. But Keith’s version reads as patriotic and is celebrated, meanwhile Wood’s version reveals how much work Black men have to do just to be seen as loyal Americans. This showcases that the nation has never treated Black lives as equally valuable, and Luibhéid’s chapter shows that this extends to the Black migrants too who were mistreated by the government by criminalizing their ability to have children and maintain family relationships.

The “undocuqueer” framework that emerges in Luibhéid’s work refuses to separate the fight against deportation from the fight against homophobia, which stands in as a contrast to the mainstream LGBT movements that seek acceptance within existing institutions. Undocuqueer activists reveal how

“American-ness” has always been reserved for those who perform the right kind of sexuality, family structure, and documentation. Their resistance reminds us that true liberation does not require joining a system built on exclusion, but dismantling it entirely.